



OFFICE OF THE POLICE COMMISSIONER
ONE POLICE PLAZA • ROOM 1400

January 7, 2016

Memorandum for: Deputy Commissioner, Trials

Re: **Police Officer Lawrence Young**
Tax Registry No. 898797
Police Service Area 9
Disciplinary Case No. 2014-12211

The above named member of the service appeared before Assistant Deputy Commissioner Nancy R. Ryan on October 14, 2015, and was charged with the following:

DISCIPLINARY CASE NO. 2014-12211

1. Said Police Officer Lawrence Young, while assigned to the 44th Precinct, on or about February 28, 2014, while on-duty, was discourteous to on-duty New York City Police Department Sergeant Owais Khanzada, tax #945879, in that said Police Officer made inappropriate remarks to said Sergeant.

P.G. 203-09, Page 1, Paragraph 2

**PUBLIC CONTACT - GENERAL
GENERAL REGULATIONS**

2. Said Police Officer Lawrence Young, while assigned to the 44th Precinct, on or about February 28, 2014, while on-duty, wrongfully absented himself from police duties for approximately one hour.

P.G. 203-05, Page 1, Paragraphs 1 & 2

**PERFORMANCE ON DUTY -
GENERAL REGULATIONS**

In a Memorandum dated December 2, 2015, Assistant Deputy Commissioner Nancy R. Ryan found Police Officer Young Guilty of Specification Nos. 1 and 2 in Disciplinary Case No. 2014-12211. Having read the Memorandum and analyzed the facts of this matter, I approve the findings, but disapprove the penalty.

POLICE OFFICER LAWRENCE YOUNG

DISCIPLINARY CASE NO. 2014-12211

In consideration of the totality of the issues and circumstances in this matter and Police Officer Young's disciplinary history, I deem that a period of monitoring is warranted. Therefore, Police Officer Young's disciplinary penalty shall be the forfeiture of twenty (20) vacation days and the imposition of one (1) year dismissal probation.


William J. Bratton
Police Commissioner



POLICE DEPARTMENT

December 2, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Lawrence Young
Tax Registry No. 898797
Police Service Area 9
Disciplinary Case No. 2014-12211

The above-named member of the Department appeared before me on October 14, 2015, charged with the following:

1. Said Police Officer Lawrence Young, while assigned to the 44th Precinct, on or about February 28, 2014, while on-duty, was discourteous to on-duty New York City Police Department Sergeant Owais Khanzada, tax #945879 in that said Police Officer made inappropriate remarks to said Sergeant.

P.G. 203-09, Page 1, Paragraph 2 – PUBLIC CONTACT – GENERAL
GENERAL REGULATIONS

2. Said Police Officer Lawrence Young, while assigned to the 44th Precinct, on or about February 28, 2014, while on-duty, wrongfully absented himself from police duties for approximately one hour.

P.G. 203-05, Page 1, Paragraphs 1 & 2 – PERFORMANCE ON DUTY –
GENERAL REGULATIONS

The Department was represented by Samuel Yee, Esq., Department Advocate's Office, and Respondent was represented by Anthony Mahoney, Esq.

Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Sergeant Owais Khanzada and Lieutenant Jose Jacome

as witnesses. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent is found Guilty of Specifications 1 and 2.

FINDINGS & ANALYSIS

On February 28, 2014, Sergeant Owais Khanzada, was working as the desk sergeant in the 44 Precinct during the third platoon. (Tr. 13). Two arrests were pending when he began his tour and he assigned Respondent Young to process them. Sergeant Khanzada testified at trial that he personally directed Respondent, who was also working the third platoon that day, to get into uniform and process the two arrests. Respondent responded by saying, "I'll suit up," and walked toward the locker room. (Tr. 14-15). About a half hour later, when he saw the arrests still had not been processed, Sergeant Khanzada looked for the Respondent and called his name over the intercom system, which he said can be heard in the male locker room. After receiving no response, he again paged Respondent to come to the desk about five to ten minutes later. After still not receiving any response, Sergeant Khanzada paged Respondent for the third time about five to ten minutes after the second page. At this point, Respondent appeared at the desk and asked Sergeant Khanzada why he was being paged. (Tr. 16-18).

According to Sergeant Khanzada, Respondent walked behind the desk without permission and in a loud, disrespectful and hostile manner addressed Sergeant Khanzada saying, "I'm a 48-year-old man and you're just a little boy trying to boss me around."

(Tr. 19). Sergeant Khanzada testified that as Respondent approached, he got up from his chair because he didn't know "what was going through [Respondent's] mind" and feared for his safety. (Tr. 20). Lieutenant Rojas, who was also behind the desk at that point, told Respondent to follow him to another room, where he spoke to Respondent for five to ten minutes. (19-20). Respondent then came back and started processing the arrests. (Tr. 21).

Lieutenant Rojas, who is retired, did not testify at trial, but his Department interview was admitted into evidence. (Tr. 34; Dep't. Ex. 2). In the interview, he stated that he was behind the desk and heard Sergeant Khanzada calling Respondent over the loud speaker a couple of times and "he had been asking about his whereabouts for the past half hour or so." (*Id.* at 3). He further stated that he then saw Respondent appear and walk around the desk and in an aggressive manner with a rising tone of voice tell Sergeant Khanzada words to the effect that Respondent was a 48 year old man and Sergeant Khanzada was just a little boy. (*Id.* at 4). At this point, Lieutenant Rojas pulled Respondent off to the side into an office where he closed the door and told him that what he was doing behind the desk was wrong. (*Id.*).

Respondent testified at trial that he was told he had two arrests to process and he then went to change. (Tr. 68). He did not hear his name being called over the intercom system and returned to the desk area somewhere between five minutes and an hour later. (Tr. 69, 79). He stated that he proceeded to go behind the desk and asked Sergeant Khanzada if he could speak to him. He then complained to Sergeant Khanzada that he was being treated unfairly for having to submit 28s when he was late and other officers did not have to. He denied calling Sergeant Khanzada "a little boy." (Tr. 64). Respondent said that Lieutenant Rojas, who was also standing there, brought him into a

room and told him he could not have a back and forth with the Sergeant like that in front of the desk. (Tr. 70). Respondent then processed the two arrests. (Tr. 71).

In this case the Department Advocate has met its burden of proving the two specifications by a preponderance of the evidence. I find that Sergeant Khanzada testified in a straightforward and credible manner. His demeanor on the stand was calm and responsive to all questions. His testimony was not impeached in any way. In addition, his testimony was corroborated by the hearsay statement of Lieutenant Rojas. Both Sergeant Khanzada and Lieutenant Rojas stated that Sergeant Khanzada had been looking for Respondent for a period over a half hour. Both also stated that Respondent went behind the front desk and addressed Sergeant Khanzada in an aggressive and disrespectful way.

In this case, Respondent himself also essentially confirmed the version of events as related by Sergeant Khanzada and Lieutenant Rojas. He acknowledged that he was told to process two arrests before he went to get dressed. While stating he was not gone for an hour, he also stated he did not return in five minutes either. Most importantly, he confirmed that when he returned from the locker room, he did go behind the desk where Sergeant Khanzada was, and proceeded to get into a discussion which prompted Lieutenant Rojas to take him into a private room and tell him he should not have that kind of exchange with the Sergeant at the desk. While Respondent denies making the remark that both Sergeant Khanzada and Lieutenant Rojas testified to, even under his version of events, he acknowledges that Lieutenant Rojas found his confrontation of Sergeant Khanzada inappropriate enough to call him away from the desk area and tell him not to have that kind of exchange in public.

Because I fully credit Sergeant Khanzada's testimony, and in that it is further supported by both the hearsay statement of Lieutenant Rojas and in large part by Respondent himself, I find Respondent Guilty of both specifications.

PENALTY

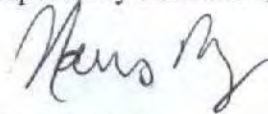
In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on October 15, 1990. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent has been found guilty of being disrespectful to a Sergeant while on duty and also absenting himself from his assigned police duties for approximately an hour. Respondent's actions were inappropriate within the structure of a paramilitary organization. Members of the service must always address ranking officers with respect and courtesy. A paramilitary organization cannot function effectively if officers challenge supervisors and disobey direct orders. For this misconduct, the Assistant Department Advocate recommended a penalty of 20 vacation days. This recommendation is consistent with prior cases. See Disciplinary Case Nos. 85384/09 & 86387/10 (Jun. 27, 2012) (fourteen-year police officer with no prior disciplinary record forfeited 20 vacation days for speaking sarcastically to a sergeant after being asked to conduct a warrant check); Disciplinary Case No. 2011-4134 (Jul. 23, 2012) (eight-year police officer with no prior disciplinary record forfeited 20 vacation days for being discourteous to the desk officer); Disciplinary Case No. 2011-3967 (Sep. 10, 2012)

(thirteen-year police officer with no prior disciplinary record forfeited 20 vacation days for discourteously yelling after being ordered by a lieutenant to effect an arrest).

Based on the foregoing, it is recommended that Respondent forfeit 20 vacation days.

Respectfully submitted,



Nancy R. Ryan
Assistant Deputy Commissioner – Trials

DISAPPROVED
JAN 07 2016

POLICE COMMISSIONER

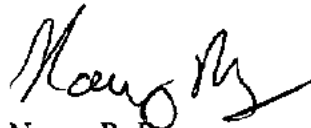
POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER LAWRENCE YOUNG
TAX REGISTRY NO. 898797
DISCIPLINARY CASE NO. 2014-12211

Respondent has received an overall rating of 3.0 "Competent" on his last three annual performance evaluations. [REDACTED]

Respondent has been the subject of one prior adjudication. In 2012, he was charged with failing to comply with an order to take his post guarding a hospitalized prisoner. He pled guilty to the charged misconduct and forfeited 30 pre-trial suspension days.

Respondent has been on Modified Duty status since October 6, 2015.



Nancy R. Ryan
Assistant Deputy Commissioner – Trials